

Memo.No.35/SC.D/88-2, Genl.Admn. (SC.D) Dept., dt.25.02.1988: AntiCorruption Bureau to send Final Reports in cases against retired Government Servants, to Government for sanction under Section 197 Cr.P.C.

Subject Heading : Sanction of prosecution - under Section 197 Cr.P.C.

Ref : From D.G., ACB., Rc.No.1/RPC(C)/88, dt.04.01.-88.

The attention of the Director General, Anti-Corruption Bureau is invited to the reference cited and he is informed that the final reports of the Anti-Corruption Bureau in respect of retired Government Employees have to be sent to the Government for according sanction under Section 197 Cr.P.C. while sanction under Section 6 of the Prevention of Corruption Act is not necessary. Final reports of the Anti-Corruption Bureau in respect of private individuals need not be sent to the Government for prosecution etc.